

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

ICA No.246925 of 2018.

Pakistan Medical and Dental Council.
Versus
Junaid Alam etc.

Sr.No. of Order/ Proceeding	Date of Order/ Proceeding	Order with signatures of Judge and that of parties or counsel, where necessary.
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06.11.2018 Ch. Muhammad Umar, Advocate.

This single order shall decide the present Intra Court Appeal No.246925 of 2018 and connected I.C.A.Nos. 246929 of 2018, 246937 of 2018, 246950 of 2018, 246924 of 2018, 246947 of 2018, 246948 of 2018, 246949 of 2018, 246951 of 2018, 246952 of 2018, 246953 of 2018, 246954 of 2018, 246955 of 2018, 246946 of 2018, 246927 of 2018, 246930 of 2018, 246939 of 2018, 246941 of 2018, 246926 of 2018. 246942 of 2018, 246945 of 2018, 246940 of 2018, 246932 of 2018, 246928 of 2018, 246933 of 2018, 246931 of 2018 and 246936 of 2018 as common questions of law and facts are involved in all the appeals and have arisen out of the same judgment.

Through this Intra Court Appeal (“ICA”) the appellant has challenged the judgment dated 09.10.2018 whereby the learned Single Judge in Chamber while allowing Writ Petition filed by respondent No.1 declared Regulation No.48 & 60 of the Pakistan Registration of Medical and Dental Practitioners Regulations, 2008 (“**the Regulations,**

2008”) *ultra vires* of the provisions of section 15 read with Section 33 of the Punjab Medical and Dental Council Ordinance, 1962 (“**the Ordinance, 1962**”) as amended in the year 2012 (through the Punjab Medical and Dental Council (Amendment) Act, 2012) and directed the appellant to allow the respondents to appear in the forthcoming National Examination Board Examination (NEB Examination) and if they are found in possession of sufficient knowledge and skill, be registered as practitioner under the Ordinance, 1962.

2. Learned counsel for the appellant submits:

(i) that regulations 48 and 60 were framed under the provisions of Section 33 of the Ordinance, 1962;

(ii) that the object of these regulations is to maintain the better standard of medical education in the country. Through the aforementioned regulations the condition to get NOC from PM&DC has been imposed on those students who intend to get medical education in foreign countries as otherwise they would not be eligible under Regulation No. 60 of the Regulations, 2018 to appear in NEB Examination;

(iii) that PM&DC being regulatory body is competent to make such regulations so as to establish a uniform minimum standard of basic and higher qualifications in medicine and dentistry and,

(iv) that there is no conflict between the regulations and Section 15 as well as 33 of the Ordinance, 1962.

3. Question which falls for determination in this appeal is whether the Regulations, 2008 are consistent

with the provisions of the Ordinance, 1962. Law governing this question is well settled, and that is, that while interpreting the *vires* of a law, rule or regulation through a court makes utmost effort to avoid the grant of any declaration, pronouncing any subordinate enactment or rule or regulation as ultra *vires* but if it becomes inevitable, it may declare any law or rule or regulation as ultra *vires* on the following grounds:

- i) it is without jurisdiction, or in excess of jurisdiction;
- ii) it is beyond the scope and purpose of the statute;
- iii) it is result of excessive delegation, or,
- iv) it is against the fundamental right.

In this regard reliance is placed on paras 29, 31 and 32 of the case reported as Khawaja Ahmad Hassaan Vs. Government of Punjab and others (2005 SCMR 186), wherein it is held as under:-

29. It is a well-recognized principle of interpretation of statutes that if the rules framed under the statute are in excess of the provisions of the statute or are in contravention of or inconsistent with such provisions then those provisions must be regarded as ultra *vires* of the statute and cannot be given effect to. (Barisal Cooperative Central Bank v. Benoy Bhusan AIR 1934 Cal.537; Municipal Corporation v. Saw Willie,-AIR 1942 Rang 70, 74)".....

31. A rule-making body cannot frame rules in conflict with or derogating from the substantive provisions of the law or statute, under which the rules are framed. No doubt that the rules-making authority has been conferred upon the Government but "a rule, which the rule-making authority has power to make will normally be declared invalid only on the following, grounds:--

- (1) Bad faith, that is to say that powers entrusted for one purpose are deliberately used with the design of achieving another, itself unauthorized or actually forbidden;

(2) that it shows on its face a misconstruction of the enabling Act or a failure to comply with the conditions prescribed under the Act for the exercise of the powers; and

(3) that it is not capable of being related to any of the purposes mentioned in the Act. (Shankar Lal Laxmi Narayan Rathi v. Authority under Minimum Wages Act, 1979 MPLJ 15 (DB).

Rules cannot go beyond the scope of the act M.P. Kumaraswami Raja AIR 1955 Mad. 326 nor can they, by themselves, enlarge the scope of statutory provisions. K. Mathuvadivelu v. RT Officer, AIR 1956 Mad. 143. They cannot also militate against the provision under which they were made. Kashi Prasad Saksena ro. State of U. P. AIR 1967 All. 173.

32. There is no cavil with the proposition that "the power of rule making is an incidental power that must follow and not run parallel to the present Act. These are meant to deal with details and can neither be a substitute for the fundamentals of the Act nor can add to them. PLD 1975 Azad J&K 81 = PLJ 1975 Azad J&K 89. There are two main checks in this country on the power of the Legislature to delegate, these being its good sense and the principle that it should not cross the line beyond which delegation amounts to abdication and self-effacement. The only requirement of law in such situations is to insist that the subordinate body charged with the duty of making rules must strictly confine itself within the sphere of its authority for the exercise of its subordinate legislative power and in each case it is the duty of the Courts in appropriate proceedings to be satisfied that the rules and regulations so made are:--

(a) by the authority mentioned in the Act, and

(b) that they are within the scope of the power delegated therein. (PLD 1966 Lah. 287).

The Hon'ble Apex Court in the case reported as Suo Motu Case No.13 of 2009 (PLD 2011 SC 619) has held as under:-

"18. From an examination of the above case law it is clear that a rulemaking body cannot frame rules in conflict with, or in derogation of, the substantive provisions of the law or statute, under which the rules are framed. Rules cannot go beyond the scope of the Act. Thus, we are inclined to hold that no rule can be made which is inconsistent with the parent statute, whereas, no regulation can be made inconsistent with the parent statute or the rules made thereunder and the provisions of these rules or regulations, as the case may

be, to the extent of their inconsistency with the parent statute or the rules shall be inoperative.

In the case of Zarai Taraqiati Bank Ltd. and others Vs. Said Rehman and others (2013 PLC (CS) 1223), it has been held that:-

16. The "rules" and "regulations" framed under any Act are meant to regulate and limit the statutory authority. All statutory authorities or bodies derive their powers from statutes which create them and from the rules or regulations framed thereunder. Any order passed or action taken which is in derogation or in excess of their powers can be assailed as ultra vires. Rules and regulations being forms of subordinate legislation do not have substantial difference as power to frame them is rooted in the statute. Statutory bodies are invariably authorized under the Act to make or adopt rules and regulations not inconsistent with the Act, with respect to such matters which fall within their lawful domain to carry out the purposes of the Act. This rule making power of such bodies, called 'delegated legislation' has assumed importance in the contemporary age. "The justification for delegated legislation is threefold. First, there is pressure on parliamentary time. Second, the technicality of subject matter necessitates prior consultation and expert advice on interests concerned. Third, the need for flexibility is established because it is not possible to foresee every administrative difficulty that may arise to make adjustment that may be called for after the statute has begun to operate. Delegated legislation fills those needs.

17. Broadly the salient characteristics of statutory rules are threefold:--

- (i) Rules or Regulations are framed by statutory or public body;
- (ii) Those are framed under the authority or powers conferred in the statute;
- (iii) Those have statutory Governmental approval or statutory sanction."

In the judgment reported as Devi Das Gopal Krishnan & Ors vs State Of Punjab & Ors (AIR 1967 SC 1895) Indian Supreme Court summing up the parameters of delegated legislation held:-

.....

An overburdened legislature or one controlled by a powerful executive may unduly overstep the limits of delegation. It may not lay down any policy at all; it may declare its policy in vague and general terms; it may not set down any standard for the guidance of the executive; it may confer an arbitrary power on the executive to change or modify the policy laid down by it without reserving for itself any control over subordinate legislation. This self-effacement of legislative power in favour of another agency either in whole or in part is beyond the permissible limits of delegation. It is for a Court to hold on a fair, generous and liberal construction of an impugned statute whether the legislature exceeded such limits. But the said liberal construction should not be carried by the Courts to the extent of always trying to discover a dormant or latent legislative policy to sustain an arbitrary power conferred on executive authorities. It is the duty of the Court to strike down without any hesitation any arbitrary power conferred on the executive by the legislature.

Further in the judgment reported as Muhammad Amin Muhammad Bashir Limited Vs. Government of Pakistan through Secretary Ministry of Finance, Central Secretariat, Islamabad and others (2015 PTD 1100), the Hon'ble august Supreme Court held that:-

“7. Can any executive authority be authorized to overrule a substantive provision of law such as section 25? Is the non obstante clause in section 25B valid? On the face of it, it is not possible for us to uphold the granting or delegation of authority to any executive or other body which entitles it to overrule a substantive provision of law. The principles of delegated legislation are very clear and hardly require any reiteration by us at this late stage. In brief, they entitle the delegate to carry out the mandate of the legislature, either by framing rules, or regulations, which translate and apply the substantive principles of law set out in the parent legislation or by recourse to detailed administrative directions and instructions for the implementation of the law. They are intended to enforce the law, not override it. They can fill in details but not vary the underlying statutory principles. In case of conflict they must yield to the legislative will. They are below and not above the law. The minutiae can be filled in but the basic law can neither be added to nor subtracted from.”

In the case reported as National Electric Power Regulatory Authority Vs. Faisalabad Electric Supply

Company Limited (2016 SCMR 550) the Hon'ble Apex Court held that:-

“11. NEPRA Rules, 1998 are framed by the Authority under Section 46 of the Act, 1997 with the approval of the Federal Government. Rules and or Regulations are the progeny or off spring of a Statute and are to be strictly in conformity with the provisions of the Statute where under same are framed. It is settled proposition of law that the rules framed under a Statute are to remain within the precinct of the Statute itself and cannot transgress the limits and parameters of the parent Statute itself. All efforts are to be made to interpret the rules so as to bring it in conformity and without injuring the intent and spirit of the Statute, where it is not possible then the rules in as much as it is injuring the very intent and spirit which must yield to the Statute. This view finds support from a case reported as Ziauddin v. Punjab Local Government (1985 SCMR 365 at 368), wherein it was held as under:-

“Rules framed under the statute could not go beyond and over reach the statute itself. To make implementation of statutory provision consistent harmonious directory effect must be given to requirement of Rule”.

12. In another case reported as Pakistan v. Aryan Petro Chemical Industries (Pvt) Ltd (2003 SCMR 370) in paragraph 11 of the judgment, it was held that “This is a settled principle that a statutory rule cannot enlarge the scope of the section under which it is framed and if a rule goes beyond what the section completes, the rule must yield to the statute. The authority of executive to make rules and regulations in order to effectuate the intention and policy of the Legislature, must be exercised within the limits of mandate given to the rule making authority and the rules framed under an enactment must be consistent with the provisions of said enactment. The rules framed under a statute if are inconsistent with the provisions of the statue and defeat the intention

of Legislature expressed in the main statute, same shall be invalid”

4. Now we proceed to examine Regulation, 2018 in the light of above stated principle of law. Admittedly legislature keeping in view the needs of the society promulgated the Ordinance, 1962 with the object to establish a uniform minimum standard of basic and higher qualification in medicine and dentistry. To achieve the said objective, section 15 of the Ordinance, 1962 as amended in 2012 provides that the Council shall conduct an examination for assessment of medical knowledge and skill of a candidates so as to select the most competent, intelligent and suitable medical practitioner. It is for that reason the PMDC in exercise of powers conferred upon it under Section 33 of the Ordinance, 1962 framed Regulations, 2008 published on 26.01.2009. Since the entire controversy in these appeals is centered around the issue as to whether Regulations 48 and 60 of the Regulations, 2008 are intra vires of Section 15 and 33 of the Ordinance, 1962 or otherwise, it shall be appropriate to examine the provisions of Section 15 of the Ordinance, 1962, which is reads as under:-

“15. Power of the Council to certify certain persons to be possessed of sufficient medical qualification.— (1) If, after an examination by a board constituted by the Council, the Council is satisfied that a person holding a qualification granted by a medical institution outside Pakistan, is possessed of sufficient knowledge and skill to be registered as a practitioner for the purpose of this Ordinance, it may recommend to the Federal Government to issue a notification in favour of such person to register him and his qualification. Upon such

notification, the Council shall register the qualification possessed by the person without it being entered in any of the Schedules of this Ordinance.

(2) The Council shall register the qualification granted by a medical institution outside Pakistan, possessed by the person by maintaining a separate list in the register.”.

The above provisions of law empower the PM&DC to make assessment or evaluation regarding sufficient medical knowledge and skill through an examination administered by the Board constituted by the Council. To regulate this mechanism of conducting the examination the PM&DC or interchangeably the council is bestowed with specific power to make regulations under the provisions of Section 33 of the Ordinance, 1962 with permission of the Federal Government. Section 33 is as follows:-

“33.---(1). The Council may, with the previous sanction of the Federal Government make Regulations generally to carry out the purposes of this Ordinance and without prejudice to the generality of this power, such Regulations may provide for---

- (a) The management of the property of the Council and the maintenance and audit of its accounts;*
- (b) The summoning and holding of meetings of the Council, the times and places where such meetings are to be held, the conduct of business thereof and the number of members necessary to constitute a quorum;*
- (c) The powers and duties of the President and Vice President;*
- (d) The mode of appointment of the Executive Committee and other Committees, the summoning and holding of meetings, and the conduct of business of such Committees;*

- (e) The tenure of office and the powers and duties of the Registrar and other officers and servants of the Council.*
- (f) The appointment, powers duties and procedure of medical and dental inspectors;*
- (g) The procedure for maintenance, compilation and publication of the Register, list of medical practitioners possessing registerable licences or diplomas, and the fees to be charged for registration and if necessary for opening of sub-offices or branches for this purpose;*
- (h) The procedure at an inquiry held under sub-section (1) of section 31; and*
- (i) Any matter for which under this Ordinance provision may be made by Regulations.*

(2) Notwithstanding anything contained in sub-section (1) the Council shall make Regulations which may provide for---

- (a) prescribing a uniform minimum standard of courses of training for obtaining graduate and post-graduate medical and dental qualifications to be included or included respectively in the First, Third and Fifth Schedules;*
- (b) prescribing minimum requirements for the content and duration of courses of study as aforesaid;*
- (c) prescribing the conditions for admission to courses of training as aforesaid;*
- (d) prescribing minimum qualifications and experience required of teachers for appointment in medical and dental institutions;*
- (e) prescribing the standards of examinations, methods of conducting the examinations and other requirements to be satisfied for securing recognition of medical and dental qualifications under this Ordinance;*
- (f) prescribing the qualifications and experience required of examiners for professional examinations in medicine and dentistry antecedent to the granting of recognized medical qualifications;*

(g) registration of medical or dental students at any medical or dental college or school or any university and the fees payable in respect of such registration.

Admittedly Regulations, 2008 are framed under Section 33 of the Ordinance 1962. The vires of Regulations 48 and 60 are under judicial scrutiny before this Court. The said regulations are reproduced as under:-

48. On the commencement of these regulations, a person who gets admission in any medical or dental course in a foreign country without being in possession of a valid No Objection Certificate issued by the Council to him prior to joining the course abroad shall not be eligible for processing of registration of his qualification if it is not included in the Second, Third or Fifth Schedule to the PM&DC Ordinance, 1962. No person shall be allowed to appear in the National Examination Board examination without the eligibility certificate issued by the Council. Persons admitted in medical and dental courses on or before the approval of these regulations shall be issued eligibility without the no objection certificate by the Council provided they fulfill all other requirements.

60. A candidate who acquires admission after the end of the year of commencement of these regulations into a foreign medical school with less than 60% marks in F.Sc. premedical or equivalent qualification shall not be entertained for NEB Examination under any circumstances.

A conjoint reading of Regulation 48 and 60 of the Regulations, 2008 makes it clear that: (a) two conditions have been imposed on a student who wants to get medical education in a foreign country, that is, firstly, to obtain NOC from PM&DC prior to joining the course abroad and, secondly, to secure more than 60% marks in F.Sc.; and, (b) in case of failure to meet

the said two conditions he shall not be eligible for processing of his registration of qualification and to appear in the NEB Examination. On the other hand, section 15 of the Ordinance, 1962 does not prescribe any embargo or restriction on the medical students to get education in a foreign country, rather it only confers an authority upon PM&DC or the Council to hold examination for evaluation and assessment of the sufficient medical knowledge and skill possessed by the candidate and if it is satisfied then register the candidate as a practitioner. It is, therefore, clear that the PM&DC while framing Regulations 48 and 60 of Regulation, 2008 exceeded its jurisdiction.

5. Undeniably the PM&DC is established under the Ordinance, 1962 and it has to function within the parameters described in the very legislated law and it has no unfettered power to make regulations at its whims and caprice or in contravention of the main statute. There is no authority or power given by the statute i.e Section 15 read with Section 33 of the Ordinance, 1962 to make regulation 48 to restrain the foreign medical qualified doctors to get registration as medical practitioner after passing the required NEB Examination. Although it is desirable that a stringent scrutiny of eligibility, qualification and skill is to be evaluated and assessed in the said examination yet it is inappropriate to oust a candidate who obtains medical education from a foreign country solely on the ground that he had not obtained any NOC from the Council prior to joining course: It is simply an arbitrary approach of the Council as it has no backing of the Ordinance, 1962.

As regards Regulation 60, it is suffice to say that it is not only contrary to the provisions of Sections 15 and 33 of the Ordinance, 1962 but also discriminatory in character as the Council, on the one hand, through the said regulation creates a bar on a student / candidate, who secures less than 60% marks in F.Sc., to obtain medical education abroad and, on the other hand, through letter dated 16.01.2017 allowed private medical colleges to give admission to the students who have secured above 50% marks in F.Sc.

6. There is another aspect of the matter which is worth consideration that under Article 8 of the Constitution of Islamic Republic of Pakistan, 1973, and law inconsistent with or in derogation of fundamental rights of the citizens of this country are considered to be void. The superior Courts are saddled with unalienable obligation to protect, preserve and safeguard such rights and any statutory provision or rule, regulations or instructions, militating with the fundamental rights, such legislation or rule as the case may be deserved to be struck down without any hesitation. To acquire education is a fundamental right under Article 9 of the Constitution which cannot be allowed to be usurped in the garb of Regulations 48 or 60 by imposing unreasonable and discriminatory conditions upon the students who are/were intending to get medical education from foreign educational institutions.

7. “Knowledge is power is an edge”. Today the era of ignorance is gradually fading away and exploration of reason, science, technology and recovery of astonishing new horizens has blasted the

knowledge and education. No society or civilization can survive any longer without knowledge or education. It is glowing trait of Islam and Islamic teachings which specially lays extraordinary emphasis upon the Muslim and generally upon the entire humanity to enlighten itself with the jewel of education, its significance and elevated standards. Following verses from Holy Quran are quoted herein below.

Quran Sura Baqra Ayat 67



Sura Baqra Ayat 119



Urdu Translation of Ayat 145 of Sura Baqra is as under:

آپ پیروی کریں۔ ان کی خواہشوں کی اس کے بعد کہ آپ کے پاس علم تو یقیناً آپ اس وقت ظالموں میں (شمار) ہوں گے۔

Urdu Translation of Ayat 268 and 269 of Sura Baqra is as under:

شیطان ڈراتا ہے تمہیں تنگ دستی سے اور حکم کرتا ہے تم کو بے حیائی کا اور اللہ تعالیٰ وعدہ فرماتا ہے تم سے اپنی بخشش کا اور فضل (و کرم) کا اور اللہ تعالیٰ بڑی وسعت والا سب کچھ جاننے والا ہے۔ عطا فرماتا ہے دانائی جسے چاہتا ہے اور جسے عطا کی گئی دانائی تو یقیناً اسے دے دی گئی، بہت بھلائی اور نہیں نصیحت قبول کرتے مگر عقل مند۔

Urdu Translation of Ayat 7 of Sura Al-Imran is as under:

اور نہیں جانتا اس کے صحیح معنی کو بغیر اللہ تعالیٰ کے اور پختہ علم والے کہتے ہیں ہم ایمان لائے ساتھ اس کے سب ہمارے رب کے پاس سے ہے اور نہیں نصیحت قبول کرتے مگر عقل مند۔

Urdu Translation of Sura Al Imran Ayat 18 is as under:.

شہادت دی اللہ تعالیٰ نے (اس بات کی کہ) بیشک نہیں کوئی خدا سوائے اس کے اور (یہی گواہی دی) فرشتوں نے اور اہل علم نے (ان سب نے یہ بھی گواہی دی کہ وہ) قائم فرمانے والا ہے۔ عدل و انصاف کو نہیں کوئی معبود سوائے اس کے (جو) عزت والا حکمت والا ہے۔

Urdu Translation of Sura Al Mujadla Ayat 11 is as under:.

اٹھ کھڑے ہو تو اٹھ کھڑے ہوا کرو۔ اللہ تعالیٰ ان کے جو تم میں سے ایمان لے آئے اور جن کو علم دیا گیا درجات بلند فرما دے گا۔ اور اللہ تعالیٰ جو تم کرتے ہو اسے خوب آگاہ ہے۔

Sura Al Alaq Ayat 4,5.

الَّذِي عَلَّمَ بِالْقَلَمِ ۖ عَلَّمَ الْإِنْسَانَ
جس نے علم سکھایا قلم کے واسطے سے اے اسی نے سکھایا انسان کو
مَا لَمْ يَعْلَمْ ۝
جو وہ نہیں جانتا تھا ۝

Sura Taha Ayat 114.

رَبِّ زِدْنِي عِلْمًا ۝
مجھے میرے رب! (اور) زیادہ میرے علم کو ۝

Urdu Translation of Sura Araf Ayat 52 is as under:

اور بے شک لے آئے ہم ان کے پاس ایک کتاب جسے ہم نے واضح کر دیا ہے
(اپنے) علم (کامل) سے در آں حالیکہ وہ ہدایت اور رحمت ہے، اس قوم کے
لیے جو ایمان لاتے ہیں۔

In Surah Baqrah, Allah Almighty has declared the superiority of Adam over the angles because of knowledge and emphasized as under:

“And He taught Adam the nature of all things; then He placed them Before the angels, and said: “Tell Me The nature of these if ye are right”.

They said: “Glory to Thee: of knowledge We have none, save what Thou Hast taught us: in truth it is Thou Who art perfect in knowledge and wisdom. [2:31-32]”

In another place of the same Surah The Quran says that We send the Prophets to teach people wisdom. Tex from English translation is as under:-

“But the best of provisions is right conduct so fear me, O ye that are wise”. (2:197).

Similarly, the Holy Prophet (Peace be upon him) has laid extraordinary emphasize on acquiring knowledge in the following Hadiths:

(Sahih Bukhari) Jild Awal Page 109.

کتاب العلم

علم

علم کی فضیلت (کے بارے میں) اللہ تعالیٰ کا ارشاد ہے
جو لوگ تم میں سے ایمان لے آئے ہیں، اور انہیں علم دیا گیا ہے، اللہ
ان کے مراتب بلند کر دے گا اور جو کچھ تم کرتے ہو، اللہ اس سے
باجبر ہے، اور اللہ تعالیٰ کا فرمان، کہ اے میرے پروردگار میرا
علم زیادہ کر۔
جس شخص سے کوئی علمی مسئلہ دریافت کیا جائے اور وہ
کسی بات میں مشغول ہو، تو اپنی پہلی بات کو پورا کرے، پھر
سائل کو جواب دے۔

بَابُ فَضْلِ الْعِلْمِ وَقَوْلِ اللَّهِ
عَزَّ وَجَلَّ يَرْفَعُ اللَّهُ الَّذِينَ آمَنُوا مِنْكُمْ
وَالَّذِينَ أُوتُوا الْعِلْمَ دَرَجَاتٍ وَاللَّهُ
يَعْلَمُ خَيْرٌ وَقَوْلُهُ رَبِّ زِدْنِي
عِلْمًا
بَابُ مَنْ سُئِلَ عِلْمًا وَهُوَ
مُشْتَغِلٌ فِي حَدِيثِهِ فَأَتَمَّ الْحَدِيثَ
ثُمَّ أَجَابَ السَّائِلَ

Mishkat.

علم کا بیان

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شکوہ ترجمہ جلد اول

کتاب العلم

پہلی فصل

عبداللہ بن عمرو سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے
فرمایا میری طرف سے پہنچا دو اگرچہ ایک آیت ہو اور بنی اسرائیل سے حدیث
بیان کرو کوئی گناہ نہیں ہے جس نے مجھ پر جان بوجھ کر جھوٹ بولا پس چاہیے
کہ کپڑے اپنا ٹھکانا دوزخ میں۔
(بخاری)

سموٰیہ بن حذافہ اور غیر بن شعبہ سے روایت ہے کہ ان دونوں نے
رسول اللہ صلی اللہ علیہ وسلم سے فرمایا جس نے مجھ سے کوئی حدیث بیان کی اور
وہ گمان رکھا ہے کہ وہ جھوٹ ہے پس وہ ایک ہے جھوٹوں میں سے۔

معاویہ سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے فرمایا جس
شخص کے ساتھ اللہ تعالیٰ کی بیعت کی کا ارادہ کرے اُسے دین میں کچھ دیتا ہے۔
سو اسے اس کے نہیں میں بائتا ہوں اور اللہ تعالیٰ دیتا ہے۔
(متفق علیہ)

ابو ہریرہ سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے فرمایا۔
لوگ کان ہیں جیسے سونے اور چاندی کی کان ہوتی ہے۔ جائزیت میں ان کے
بتدریج اسلام میں بہتر ہیں جبکہ سمجھیں۔
(مسلم)

ابن مسعود سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے فرمایا
جس شخص میں سے مگر دو قصوں میں ایک وہ آدمی اللہ نے جسے مال دیا اور حق
میں اُسے خرچ کرنے کی توفیق دی ہے اور دوسرا شخص اللہ نے اس کو حکمت
دی پس وہ اس کے ساتھ حکم کرتا ہے اور فیصلہ کرتا ہے۔
(متفق علیہ)

ابو ہریرہ سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے فرمایا جب
آدمی مر جاتا ہے اس کے عمل کا ثواب ہو تو وہ ہو جاتا ہے مگر تین عملوں کا ثواب
باقی رہتا ہے حمد و تجار یا علم کہ نفع لیا جائے اس کے ساتھ باقی
اولاد جو اس کے لیے دعا کرے۔
(مسلم)

۱۸۴ عَنْ عَبْدِ اللَّهِ بْنِ عَمْرٍو قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى
اللَّهُ عَلَيْهِ وَسَلَّمَ يَلْعَنُ اللَّهُ الْبُخَارِيَّ وَحَدَّثَنَا أَبُو بَكْرِ
إِسْمَاعِيلُ وَلَا حَدَّثَنَا عَنْ كَذِبٍ عَلَى مَنْعِدٍ فَلْيَتَّبِعُوا
مَقْعَدًا مِنَ النَّارِ - (دَوَاةُ الْمُسْلِمِ)

۱۸۵ عَنْ سَمُوِّ بْنِ حَذَافَةَ وَغَيْرِ بْنِ شُعْبَةَ
قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَنْ حَدَّثَ عَنِّي
بِحَدِيثٍ يُدْرِي أَنَّهُ كَذِبٌ فَهُوَ أَحَدُ الْكَافِرِينَ -
(دَوَاةُ الْمُسْلِمِ)

۱۸۶ عَنْ مُعَاوِيَةَ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ
وَعَلَيْهِ وَسَلَّمَ مَنْ يُرِدِ اللَّهُ بِهِ خَيْرًا يُفْقَهُهُ فِي
الدِّينِ وَدُنْيَا أَفَاسِمَهُ وَاللَّهُ يُعْطِي -
(مُتَّفَقٌ عَلَيْهِ)

۱۹۱ عَنْ أَبِي هُرَيْرَةَ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ
وَسَلَّمَ النَّاسُ مُعَاوِدُونَ لِلنَّهْبِ وَالْفِتْنَةِ خِيَارُهُمْ
فِي الْجَاهِلِيَّةِ خِيَارُهُمْ فِي الْإِسْلَامِ إِذَا فُفِّهُوا - (دَوَاةُ الْمُسْلِمِ)

۱۹۱ هُوَ ابْنُ مَسْعُودٍ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ
عَلَيْهِ وَسَلَّمَ لَا حَسَدَ إِلَّا فِي اثْنَيْنِ رَجُلٌ أَحْبَبَهُ اللَّهُ
مَالًا فَكَسَلَهُ عَلَى هَلَكَتِهِ فِي الْحَقِّ وَرَجُلٌ أَحْبَبَهُ اللَّهُ
الْحِلْمَةَ فَهُوَ يُفْتَنُ بِهَا وَيُعْلَمُ بِهَا -
(مُتَّفَقٌ عَلَيْهِ)

۱۹۲ هُوَ ابْنُ هُرَيْرَةَ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ
عَلَيْهِ وَسَلَّمَ إِذَا مَاتَ الْإِنْسَانُ انْقَطَعَ عَنْهُ عَمَلُهُ إِلَّا
مِنْ ثَلَاثٍ جَارِيَةٍ أَوْ عِلْمٍ يُنْتَفَعُ بِهِ
أَوْ وَلٍ مَالٍ يَتَصَدَّقُ بِهِ -
(دَوَاةُ الْمُسْلِمِ)

Sunan Abu Dawood.

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

کتاب العلم شروع!

علم حاصل کرنے کی فضیلت اور اس طرف رغبت دلانا

مسند عبد اللہ بن داؤد، مسلم بن حجاج، داؤد بن جہل کثیر بن قیس سے روایت ہے کہ میں ابی الدردار کے ساتھ دمشق کی مسجد میں بیٹھا تھا اتنے میں ان کے پاس ایک شخص آیا اور ان سے کہا میں تمہارے پاس رسول اللہ صلی اللہ علیہ وسلم کے مدینہ سے آیا ہوں ایک حدیث کے واسطے مجھے خبر دیجیے کہ تم اس حدیث کو نقل کرتے ہو رسول اللہ صلی اللہ علیہ وسلم سے اور میں کسی اور شخص کے لئے نہیں آیا ہوں ابوالدردار نے کہا مگر میں نے آنحضرت سے سنا آپ فرماتے تھے جو شخص علم حاصل کرنے کے لئے راہ طے اللہ تعالیٰ اس کے سبب اس کو بہشت کی راہ چلاتا ہے اور طالب علم کی خوشی کے لئے فرشتے اس کے روبرو اپنے پر بچاتے ہیں اور بے شک عالم کے لئے بخشش چلتی ہے جو آسمان اور زمین میں رہنے والے ہیں یہاں تک کہ کھجلیاں پانی میں اور عابد کے اوپر عالم کی فضیلت اسی ہے جیسے چودھویں رات کے چاند کی بڑی تمام تاروں پر ہے اور مقررہ بغیروں کے وارث عالم ہی ہیں اور بغیروں نے کسی کو اپنا وارث درہم و دینار کا نہ کیا، بجز علم کے اپنی میراث میں کچھ نہ چھوڑا تو جس نے علم حاصل کیا اسی نے کامل حصہ لیا۔

ف یعنی وہ جسے جو بغیروں نے حاصل کیا تھا دنیا میں علم سے زیادہ کوئی نعمت نہیں ہے اس نعمت کو روز بروز ترقی ہے بھی زوال نہیں جس قدر علم کو فروغ کروا سکی قدر بڑھتا جاتا ہے برخلاف مال کے کہ خرچ

أَوَّلُ كِتَابِ الْعِلْمِ

بَابُ فِي فَضْلِ الْعِلْمِ

۲۳۵۔ حَدَّثَنَا مُحَمَّدُ بْنُ مَسْعُودٍ عَنْ أَبِي مَسْعُودٍ عَنْ أَبِي هُرَيْرَةَ أَنَّ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ: «مَنْ سَمِعْتُ عَصَا جِبْرِيلَ عَنْ جِبْرِيلَ بْنِ جِبْرِيلَ عَنْ أَبِي هُرَيْرَةَ قَالَ: كُنْتُ جَالِسًا مَعَ أَبِي هُرَيْرَةَ فِي مَسْجِدٍ مَشْرِقِيٍّ فَجَاءَهُ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لِحَدِيثٍ بَلَغَنِي أَنَّكَ تُحَدِّثُ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَا جِئْتُ بِحَاجَتِهِ قَالَ: كَيْفَ سَمِعْتَ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ مَنْ سَلَكَ طَرِيقًا يَطْلُبُ فِيهِ عِلْمًا سَلَكَ اللَّهُ بِهِ طَرِيقًا إِلَى الْجَنَّةِ وَإِنَّ الْمَلَائِكَةَ لَتَضَعُ أَجْنِحَتَهَا رِجًا لِرُكَّابِ الْعِلْمِ وَإِنَّ الْعَالِمَ لَيَسْتَعْفِفُ لَكَ مَنْ فِي السَّمَوَاتِ وَالْأَرْضِ وَالْجِبْتَانِ فِي جُوفِ الْمَاءِ وَإِنَّ فَضْلَ الْعَالِمِ عَلَى الْعَابِدِ كَفَضْلِ الْقَمَرِ عَلَى كَوْكَبٍ لَيْلًا وَإِنَّ الْعُلَمَاءَ وَكَثَرَةُ الْكُتُبِ وَإِنَّ الْكُتُبَ لَكُلِّ بَرٍّ نَزَّادٍ وَإِنَّمَا وَكَلَهُمَا إِنْ مَاتَ وَكَثُرَ الْعِلْمُ فَكُنْ أَخَذَ بِحَقِّهِ وَانْبَغَى»

محمد بن الوزیر، ولید، شیبہ عثمان ابوالدردار رضی اللہ تعالیٰ عنہ نے رسول اللہ صلی اللہ علیہ وسلم کو اسی طرح روایت کیا ہے۔

احمد بن یونس، زائدہ، عیش، ابو صالح ابو ہریرہ سے روایت ہے کہ رسول اللہ صلی اللہ علیہ وسلم نے فرمایا ایسا کوئی شخص نہیں ہے جو علم دین کا سیکھنے کے لئے راہ طے لیکن اللہ تعالیٰ اس کی برکت سے بہشت کی راہ آسان کر دے گا اور جس کیساتھ اس کے عمل نے دیگر گناہ تو اس کیساتھ اس کا نسب کچھ شتابی نہ کرے گا۔

ف یہ بہشت کی بشارت ہے طالب علم اور دینداروں کے حق میں علم دین تفسیر و حدیث و فقہ ہے اور جو علم کو تفسیر و حدیث میں کام آئے جیسے صرف و نحو وغیرہ اور جس سے مسلمانوں کو فیض و ہدایت ہو وہ سب علم دین میں داخل ہے مگر نیت خالص ہونا چاہیے۔

ف یعنی بدولت نیک عمل کے ذات کچھ کام نہ آوے گی، ہر صریح بندگی باپ پیر زادگی منظور نیست۔

۲۳۶۔ حَدَّثَنَا مُحَمَّدُ بْنُ الْوَزِيرِ الْوَلِيدُ عَنْ شَيْبَةَ عَنْ عُثْمَانَ بْنِ أَبِي هُرَيْرَةَ أَنَّ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ: «مَنْ سَمِعْتُ عَصَا جِبْرِيلَ عَنْ جِبْرِيلَ بْنِ جِبْرِيلَ عَنْ أَبِي هُرَيْرَةَ قَالَ: كُنْتُ جَالِسًا مَعَ أَبِي هُرَيْرَةَ فِي مَسْجِدٍ مَشْرِقِيٍّ فَجَاءَهُ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لِحَدِيثٍ بَلَغَنِي أَنَّكَ تُحَدِّثُ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَا جِئْتُ بِحَاجَتِهِ قَالَ: كَيْفَ سَمِعْتَ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ مَنْ سَلَكَ طَرِيقًا يَطْلُبُ فِيهِ عِلْمًا سَلَكَ اللَّهُ بِهِ طَرِيقًا إِلَى الْجَنَّةِ وَإِنَّ الْمَلَائِكَةَ لَتَضَعُ أَجْنِحَتَهَا رِجًا لِرُكَّابِ الْعِلْمِ وَإِنَّ الْعَالِمَ لَيَسْتَعْفِفُ لَكَ مَنْ فِي السَّمَوَاتِ وَالْأَرْضِ وَالْجِبْتَانِ فِي جُوفِ الْمَاءِ وَإِنَّ فَضْلَ الْعَالِمِ عَلَى الْعَابِدِ كَفَضْلِ الْقَمَرِ عَلَى كَوْكَبٍ لَيْلًا وَإِنَّ الْعُلَمَاءَ وَكَثَرَةُ الْكُتُبِ وَإِنَّ الْكُتُبَ لَكُلِّ بَرٍّ نَزَّادٍ وَإِنَّمَا وَكَلَهُمَا إِنْ مَاتَ وَكَثُرَ الْعِلْمُ فَكُنْ أَخَذَ بِحَقِّهِ وَانْبَغَى»

As well as

“Seek knowledge from the cradle to grave.”

In another Hadith, it has been said:-

“Seek knowledge even as far as China.”

Martyr of Islam has been bestowed outstanding grandeur and glory and while comparing an “Alam” with a martyr, the Holy Prophet (P.B.U.H.) has said:

“A drop of sweat of the brow of thinker is better than the thousand blood drops of the martyr”

Similarly on another occasion it has been said:

“Whoever seeks a way to acquire knowledge Allah will make easy his way to Paradise”

[Sahih Muslim]

In another Hadith regarding the need of knowledge, the Holy Prophet (P.B.U.H.) has said:

“Seeking knowledge is obligatory upon every Muslim”.[Sunan Ibn Majah]

Dr. Maurice Bucaille in a book titled, “The Bible, The Quran and Science” has proved the Islam as a scientific religion emphasizing on the need of scientific inquiry.

Moreover the glory of education and its need for the development of society/nation remained vibrant in the catalogue of great Muslim educationist reformers such as Sir Syed Ahmad Khan and similarly the significance of knowledge even could not have been escaped from the vision of Quaid-e-Azam, who in his Presidential Address at All India Muslim League, Lahore on March 23, 1940 said:

“Come forward as servants of Islam, organise the people economically, socially,

educationally and politically and I am sure that you will be a power that will be accepted by everybody.”

He also said:-

“You must concentrate on gaining knowledge and education. It is your foremost responsibility. Political awareness of the era is also part of your education. You must be aware of international events and environment. Education is a matter of life and death for our country”.

Further the Charter of United Nations also protect the gaining of primary and higher education, Article 26 whereof is as under:-

“In order to promote the establishment and maintenance of international peace and security with the least diversion for armaments of the world's human and economic resources, the Security Council shall be responsible for formulating, with the assistance of the Military Staff Committee referred to in Article 47, plans to be submitted to the Members of the United Nations for the establishment of a system for the regulation "of armaments”.

Moreover the universal declaration on human rights has been adopted by the UNESCO on October, 5, 2005 and Pakistan is signatory to it which obligated upon ratifying state to ensure the dissemination of information to its citizens. To achieve the above objective, our legislature admitting significance of education through Article 25-A of the Constitution has declared it as a fundamental right of the citizens.

In the successful life of an individual, the education plays an important role. Generally, it is

considered to be the foundation of society which brings economic wealth, social prosperity, political stability and maintaining healthy population. In case of deficit of educated people, the further progress of the society is stopped. Educated individuals enjoy respect among the comity of nations and can effectively contribute to the development of their country and society by inventing new devices and discoveries.

The imposition of condition upon acquiring the better education amounts to violation of fundamental right of education as guaranteed under Article 25-A of the Constitution and any provision circumventing such fundamental right has to crumble down. Reliance is placed on Al-Jehad Trust through Raeesul Mujahidden Habib-ul-Wahabb-ul-Khairi and others Vs. Federation of Pakistan and others (PLD 1996 SC 324). Further to receive better or higher education is undoubtedly a fundamental right guaranteed under Articles 4 and 9 of the Constitution which has direct bearing upon the quality of life of a citizen and such preserved and safeguarded right cannot be taken away by any executive rule making authority without any legal foundation. The Hon'ble Supreme Court of Pakistan in a case reported as Rana Aamer Raza Ashfaq and another Vs. Dr. Minhaj Ahmad Khan and another (2012 SCMR 6), wherein it has been held as under:-

“33. Right to education is a fundamental right as it ultimately affects the quality of life which has nexus with other Fundamental Rights guaranteed by the Constitution under Article 4 and 9 of the Constitution of Islamic Republic of Pakistan. Awareness of rights and duties, growth of civic consciousness in a society, enjoyment of Fundamental Rights guaranteed under the Constitution and legal empowerment of people depend to a great extent on the quality of education. People cannot be free in the real sense unless they are properly educated.”

Moreover under Article 18 of the Constitution, Freedom of trade, business or profession is also a fundamental right subject to certain qualification, (if any, as prescribed by law), every citizen shall have the right to enter upon any lawful profession or occupation and to conduct any lawful trade or business. Admittedly respondent obtained medical education, ancillary skills and expertise with the legitimate two fold expectations firstly to enter into the laudable medical profession and secondly for the better quality of life as well.

8. The Hon'ble Supreme Court of Pakistan in the case reported as Dossani Travels Pvt. Ltd. and others Vs. Messrs Travels Shop (Pvt) Ltd and others (PLD 2014 Supreme Court 1) held that the constitution of a country is an organic whole and the import of a certain provision has to be construed in the context of the overall scheme of the Constitution. By qualifying the right to business and trade, the Constitution makers wanted to create a balance between the societal needs and the rights of an individual, which could not be circumvented or taken away by means of any sub delegated rule making executive authority. In the light of above, the restrictions imposed by PM&DC under the guise of Regulations 48 & 60 of the Regulations, 2008 which unambiguously secure no support from the provisions of Section 15 and 33 of the Ordinance, 1962 as amended in 2012, were rightly declared as *ultra vires* by the learned Single Bench.

9. In view of the above these appeals have no merit, which are hereby **dismissed in limine.**

(Shahid Waheed)
Judge

(Ch. Muhammad Iqbal)
Judge

Approved for reporting

Judge

A.Rehman.